2. Right of Minorities to Establish and Administer Educational Institutions

Article 30 grants the following rights to minorities, whether religious or linguistic:

1. All minorities shall have the right to establish and administer educational institutions of their choice.

2. The compensation amount fixed by the State for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them. This provision was added by the 44th Amendment Act of 1978 to protect the right of minorities in this regard. The Act deleted the right to property as a Fundamental Right (Article 31).

3. In granting aid, the State shall not discriminate against any educational institution managed by a minority.

Thus, the protection under Article 30 is confined only to minorities (religious or linguistic) and does not extend to any section of citizens (as under Article 29). However, the term 'minority' has not been defined anywhere in the Constitution.

The right under Article 30 also includes the right of a minority to impart education to its children in its own language.

Minority educational institutions are of three types:

1. institutions that seek recognition as well as aid from the State;

2. institutions that seek only recognition from the State and not aid; and

3. institutions that neither seek recognition nor aid from the State.

The institutions of first and second type are subject to the regulatory power of the state with regard to syllabus prescription, academic standards, discipline, sanitation, employment of teaching staff and so on. The institutions of third type are free to administer their affairs but subject to operation of general laws like contract law, labour law, industrial law, tax law, economic regulations, and so on.

In a judgement delivered in the *Secretary of Malankara Syrian Catholic College* case[14a] (2006), the Supreme Court has summarized the general principles relating to establishment and administration of minority educational institutions in the following way:

1. The right of minorities to establish and administer educational institutions of their choice comprises the following rights:

    1. To choose its governing body in whom the founders of the institution have faith and confidence to conduct and manage the affairs of the institution;

    2. To appoint teaching staff (teachers/lecturers and head-masters/principals) as also non-teaching staff; and to take action if there is dereliction of duty on the part of any of its employees;

    3. To admit eligible students of their choice and to set up a reasonable fee structure; and

    4. To use its properties and assets for the benefit of the institution.